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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

RESPONSE TO MC-010

MEMORANDUM OF COSTS

Hearing: Date TBD / specially set
Dept.: 301
Calendar: CRC 3.1700(b)

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 3.1700, subdivision (b); Code of Civil Procedure sections 1032 and 1033.5; Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; and California Rules of Court, rules 3.1110 and

3.1113.

3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

4. The Court's authority to consider the substance is under California Rules of Court, rule 3.1700, and Code of Civil Procedure sections 1032 and 1033.5.

5. This paper is filed August 14, 2026, which is early and still timely under California Rules of Court, rule 3.1700, subdivision (b), following electronic service of Defendants' Memorandum of Costs (MC-010) on August 11, 2026.

Hearing: Date TBD / specially set under CRC 3.1700(b). Do not merge this tax response into the fee motion set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673; served August 11, 2026). Plaintiff opposes the fee motion and does not concede a stipulated date. Dept. 301. Hon. Christine Van Aken. Case No. CGC-25-631801.

I. INTRODUCTION

On August 11, 2026, Defendants CSAA Insurance Exchange; Carbone, Smith & Koyama; and Michael R. Chambers, through counsel Tyler J. O'Connell, served / claimed a concurrent Judicial Council form MC-010 Memorandum of Costs (Summary). That MC-010 is **not separately docketed** as an ROA DocID among Tx 80309587 DocIDs 10369670/10369671/10369673 (do not invent a DocID). The claimed amounts are:

Line	Category	Amount
1	Filing and motion fees	\$1,064.95
5	Service of process	\$72.51
Total		\$1,137.46

All other cost lines are blank. The form is dated 8/11/2026. A cost-detail printout (Porter Scott

1 “Detail Cost Transaction File List,” Client ID 3064.0323, dated 07/14/2026 on its face) accompa-
2 nies the memorandum and totals the same **\$1,137.46**. Electronic service proof accompanies the
3 package.

4 **Cross-reference / filing status:** This document is the supporting memorandum of points and au-
5 thorities for Plaintiff’s separately noticed **Motion to Tax or Strike Costs** under CRC 3.1700(b).
6 The noticed tax motion is filed August 14, 2026, which is early and still timely on the CRC
7 3.1700(b) clock. Do not treat this narrative response alone as the tax motion.

8 This response addresses the MC-010 only. It does not concede fee entitlement under Code of Civil
9 Procedure section 425.16(c). The fee motion set for September 8, 2026, 9:00 a.m., Department
10 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673; served August 11,
11 2026) separately demands the **same** \$1,137.46 as “costs.”

12 **II. PROCEDURAL OBJECTIONS (CRC 3.1700 / CCP SECTION 1033.5)**

13 **A. PREMATURITY: NO JUDGMENT OF DISMISSAL ON ROA THROUGH** 14 **AUGUST 12, 2026, 1:06 P.M.**

15 CRC 3.1700(a) ties the memorandum of costs to the time after notice of entry of judgment or
16 the other triggering events the rule specifies. Through August 12, 2026, 1:06 p.m., the Register
17 of Actions for CGC-25-631801 showed the August 6, 2026 order granting the special motion to
18 strike, but Plaintiff has not observed a separately entered **judgment of dismissal** row.

19 Plaintiff objects that the MC-010 is premature. Plaintiff does not waive prematurity by addressing
20 duplication or item amounts. If Defendants contend a different triggering date or instrument, they
21 should identify it with a ROA citation.

22 **B. DUPLICATION OF IDENTICAL \$1,137.46**

23 Defendants’ Notice of Motion for Attorneys’ Fees and Costs under section 425.16(c) demands
24 costs of **\$1,137.46** as part of the \$37,110.46 total. The O’Connell Declaration paragraph 14 states
25 Defendants “will concurrently file a Memorandum of Costs, which will list the same cost amount
26 sought here, totaling: \$1,137.46.”

27 Plaintiff objects to double recovery of the same \$1,137.46 through the ROA-confirmed fee motion

(Tx 80309587) and the claimed concurrent MC-010 (not separately DocID'd). The Court should strike the MC-010, reduce it to \$0, or defer entry until the fee motion is resolved with an express order that costs are awarded in only one vehicle, if at all.

C. ALLOWABLE COST CATEGORIES ONLY

Recoverable costs are limited to those allowable under section 1033.5. Plaintiff objects to any amount that is not a recoverable filing, motion, or service cost, including overhead, nonallowable vendor markup, attorney time mislabeled as costs, or fees not actually and necessarily incurred in this case.

D. FEES MOTION IS SEPARATE

Line 10 of MC-010 (attorney fees) is blank, correctly reflecting that statutory fees require a noticed motion. Nothing in this MC-010 response concedes fee entitlement under section 425.16(c). Plaintiff opposes the fee motion by papers filed August 14, 2026, which is early and still timely, measured from August 11, 2026 service. September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670 notice, 10369671 O'Connell declaration, 10369673 MPA; served August 11, 2026). Plaintiff opposes the motion and does not concede a stipulated date.

III. SUBSTANTIVE OBJECTIONS TO THE \$1,137.46 CLAIM

A. LINE 1: \$1,064.95 FILING AND MOTION FEES

The cost detail (OCR of served papers) lists, among other charges, amounts corresponding to:

1. E-filing of meet-and-confer / declaration materials (March 2026 timeframe on detail);
2. Certified mail charges;
3. Multiple First Legal e-filing charges on or about April 15 and April 30, 2026, for notices, declarations, MPAs, RJNs, and related filings;
4. CourtCall telephonic appearance fee for an ex parte application (April 2026 timeframe);
5. E-filing of Case Management Conference statement;
6. E-filing of notices of withdrawal / related courtesy deliveries;
7. Additional opposition / reply e-filing events.

1 Plaintiff objects to each component that is:

- 2 • not an allowable cost under section 1033.5;
- 3 • not necessarily incurred;
- 4 • attributable to motions other than the special motion to strike (including demurrer / CCP 436
- 5 practice and CMC housekeeping);
- 6 • attributable to withdrawn or off-calendar practice; or
- 7 • duplicative of amounts also swept into the fee motion's "costs" ask.

8 Until Defendants map each Line 1 dollar to an allowable, necessary filing fee for a recoverable
9 event, Line 1 should be taxed to \$0 or to the proven subset only.

10 **B. LINE 5: \$72.51 SERVICE OF PROCESS**

11 Plaintiff objects to the \$72.51 service line pending proof of:

- 12 1. what was served;
- 13 2. that the charge is allowable under section 1033.5;
- 14 3. that it is not already included in Line 1 certified-mail / vendor charges; and
- 15 4. that it is not duplicated in the fee motion.

16 **C. NO CONCESSION OF PREVAILING-PARTY STATUS FOR ALL** 17 **PURPOSES**

18 Cost entitlement depends on prevailing-party status and the scope of what was actually determined.
19 The August 6, 2026 order granted the special motion to strike as framed; it does not automatically
20 convert every vendor charge on the Porter Scott cost ledger into an allowable cost, and it does not
21 authorize double recovery with the fee motion.

22 **D. APPORTIONMENT / UNRELATED MATTERS**

23 Plaintiff objects to inclusion of any costs incurred in Case No. CGC-25-631802, in the personal-
24 injury action, or for work unrelated to allowable costs in CGC-25-631801.

25 **IV. REQUESTED RELIEF**

26 Plaintiff respectfully requests that the Court:

1. Strike the MC-010 as premature until a judgment of dismissal or other proper CRC 3.1700(a) trigger is shown on the ROA;
2. Strike or reduce the \$1,137.46 claim to \$0 based on duplication with the fee motion noticed by Defendants for September 8, 2026;
3. Alternatively, tax Line 1 (\$1,064.95) and Line 5 (\$72.51) to only those amounts proved allowable and necessary after item-level reconciliation;
4. Require Defendants to serve a verified statement that no cost dollar awarded on the MC-010 will also be awarded on the fee motion;
5. Defer entry of costs until prematurity, duplication, and item challenges are resolved; and
6. Grant such other relief as is just.

Dated: August 14, 2026



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Plaintiff, In Pro Per

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